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June 28, 1951

MEMORANDUM FOR THE PRESIDENT

I attach hereto:

1. The text of the June 14, 1951, proposed Japanese Peace Treaty. This was the text agreed upon by Mr. Morrison and Mr. Dulles in London subject to Governmental approvals. The British Cabinet gave its approval on June 21.

2. Letter to me from Secretary Marshall transmitting a copy of the memorandum to him of June 26, 1951, from General Bradley on behalf of the Joint Chiefs of Staff, containing the latter's comments on the draft treaty.

With one exception, the points raised by the Joint Chiefs of Staff memorandum of June 26, 1951, relate to matters of drafting and clarification and do not involve any substantive problem. The only substantive problem, as pointed out in Secretary Marshall's letter to me, relates to the question of whether or not it is practical or necessary to seek for the United States a power to veto indefinitely the right of other Allied Powers to make peace with Japan on the terms of this Treaty.

The present text (Article 23) would assure that for nine months after Japan's ratification of the multilateral treaty, it cannot come into force as regards any one without ratification by the United States. That, in effect, will give us veto over the treaty coming into force in any respect until about July 1, 1952.

Only with great difficulty have we obtained this nine months' veto power for the United States. We obtained it on the theory that the United States as principal occupying power, should be able provisionally to control

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control the situation because, through SCAP, it has the administrative problem in Japan of effecting transition from a state of war to a state of peace.

We feel sure that any attempt to enlarge our veto power so as to make it perpetual would be unsuccessful and would put us in a position of seeking for ourselves the kind of veto power which the Soviet Union has sought for itself in relation to the Japanese Peace Treaty and which we have vigorously and repeatedly condemned.

The Joint Chiefs of Staff have a proper concern that no action should be taken without United States concurrence which could deny the facilities in Japan needed for the prosecution of military action in Korea. I believe that our legal rights in this respect are fully protected so long as the United States, as principal occupying power, retains its belligerent rights in and through SCAP. Furthermore, if hostilities persist into next year, it can be assumed that the other Allied Powers whose troops are actively participating therein, would, of their own volition, act in concert with us to prevent any coming into force of the Peace Treaty which would embarrass our common effort. The United States can, in this respect, exercise a strong influence, even though it cannot obtain a legal right over the other Allied Powers.

In this matter it may also be important to retain both legal and practical flexibility. It cannot be guaranteed that a satisfactory status quo can be maintained indefinitely in Japan in the absence of a peace settlement. When it comes to determining, next year, the exact program for the coming into effect of the Peace Treaty as between Japan and the United States and perhaps others, you will, I think, want to consider not only the military position in and about Korea but also the requirement that Japan should continue to be a bastion that is friendly.

In view of the foregoing, it is my recommendation that the point raised by the Joint Chiefs of Staff in paragraphs 3 and 10 of their memorandum, which Secretary Marshall and I agree should be submitted to you, should be resolved in favor of maintaining the formula of Articles 1 and 23 of the attached draft and that we should be authorized to proceed to circulate to other governments the

attached

attached treaty draft with minor textual modifications such, for example, as are required to meet certain of the points raised by the Joint Chiefs of Staff, and such as do not involve security or important substantive considerations. The final drafting of a definitive text will take place on receipt of comments of other governments.

DEAN ACHESON



Attachments:

1. Text proposed Japanese Peace Treaty, June 14, 1951.
2. Letter June 28, 1951 from Secretary Marshall to Secretary Acheson transmitting JCS memorandum June 26, 1951.